

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Team # 5	CCRB Case #: 201310593	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 11/08/2013 5:30 PM	Location of Incident: Inside the Chambers Street J/Z train station, TD2 stationhouse, and MCB	Precinct: 01	18 Mo. SOL 5/8/2015	EO SOL 5/8/2015	
Date/Time CV Reported Tue, 11/12/2013 10:49 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 11/12/2013 10:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Garry Lamour	30321	950716	TB DT02

Officer(s)	Allegation	Investigator Recommendation
A.POM Garry Lamour	Abuse: Inside the Chambers Street J/Z train station, PO Garry Lamour stopped § 87(2)(b)	
B.POM Garry Lamour	Discourtesy: Inside the Chambers Street J/Z train station and the Transit District 2 stationhouse, PO Garry Lamour spoke rudely to § 87(2)(b) and § 87(2)(b)	
C.POM Garry Lamour	Force: Inside the Chambers Street J/Z train station, PO Garry Lamour used physical force against § 87(2)(b)	
D.POM Garry Lamour	Abuse: Inside the Chambers Street J/Z train station, PO Garry Lamour arrested § 87(2)(b)	
E.POM Garry Lamour	Off. Language: Inside of Manhattan Central Booking, PO Garry Lamour made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientation.	
F.POM Garry Lamour	Abuse: Inside the Transit District 2 stationhouse, PO Garry Lamour damaged § 87(2)(b)'s property.	

Case Summary

On November 12, 2013, § 87(2)(b) and § 87(2)(b) filed a complaint with the CCRB via walk-in. On November 8, 2013, at approximately 5:30 p.m., § 87(2)(b) and § 87(2)(b) were arrested inside the Chambers Street J/Z train station by PO Garry Lamour. The following allegations resulted:

Allegation A – Abuse of Authority: Inside the Chambers Street J/Z train station, PO Garry Lamour stopped § 87(2)(b) § 87(2)(g)

Allegation B - Discourtesy: Inside the Chambers Street J/Z train station and the Transit District 2 stationhouse, PO Garry Lamour spoke rudely to § 87(2)(b)

and § 87(2)(b)

Allegation C – Physical Force: Inside the Chambers Street J/Z train station, PO Garry Lamour used physical force against § 87(2)(b)

Allegation D - Abuse of Authority: Inside the Chambers Street J/Z train station, PO Garry Lamour arrested § 87(2)(b) § 87(2)(g)

Allegation E – Offensive Language: Inside of Manhattan Central Booking, PO

Garry Lamour made remarks to § 87(2)(b) and § 87(2)(b)

based upon their perceived sexual orientation.

Allegation F – Abuse of Authority: Inside the Transit District 2 stationhouse, PO

Garry Lamour damaged § 87(2)(b) § 87(2)(g) s property.

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

Complainant: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. § 87(2)(b) is § 87(2)(b) s father.
- § 87(2)(b) was § 87(2)(b) at the time of this incident. § 87(2)(b) is § 87(2)(b) s mother.

CCRB Statement

On November 12, 2013, § 87(2)(b) and § 87(2)(b) filed this complaint via walk-in at the CCRB on behalf of their respective children, § 87(2)(b) and § 87(2)(b). Neither of them witnessed this incident (encl. [3A-M]).

Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) is a black male, 5'11" tall, 165 pounds, with black hair, brown eyes, and glasses. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on November 12, 2013 (encl. [3N-U]). On November 8, 2013, at approximately 5:30 p.m., § 87(2)(b) and § 87(2)(b) entered the Chambers Street J/Z train station, which is located at the southern end of Foley Square in Manhattan, and which connects to the Brooklyn Bridge – City Hall 4/5/6 stop. Prior to entering the train station, § 87(2)(b) stopped at McDonald's, where he purchased sweet tea.

§ 87(2)(b) observed an officer, who he later identified by uniform as PO Garry Lamour, standing four or five feet outside the turnstile. § 87(2)(b) used his student MetroCard to enter the transit system. § 87(2)(b) used his student MetroCard behind § 87(2)(b). Immediately after § 87(2)(b) walked through the turnstile, PO Lamour said, "Let me see your ID." PO Lamour then entered the station through the emergency exit and stood two to three feet in front of § 87(2)(b) and § 87(2)(b).

PO Lamour requested identification and a MetroCard from both § 87(2)(b) and § 87(2)(b). § 87(2)(b) complied. After reviewing his identification and MetroCard, PO Lamour told § 87(2)(b) "Okay...you're good." § 87(2)(b) who still carried his student MetroCard in his hand, asked PO Lamour, "Why do you need to see our MetroCards?" § 87(2)(b) seemed confused. § 87(2)(b) did not raise his voice, or make any movements with his body. PO Lamour raised his voice and said, "Let me see your MetroCard. Let me see your fucking MetroCard." PO Lamour requested § 87(2)(b)'s identification three or four times, after which PO Lamour snatched his MetroCard from his hand. PO Lamour read the information listed on the back of § 87(2)(b)'s student MetroCard and said, "Now let me see your identification." § 87(2)(b) attempted to reach for his identification, which was in his wallet in an interior pocket on the right side of his jacket. § 87(2)(b) also told PO Lamour that he was reaching for his wallet. PO Lamour said, "Get your hand out of your fucking pocket." § 87(2)(b) put his hands down by his sides and again asked, "Why do you need to see our identification?" PO Lamour again ordered § 87(2)(b) to provide it. § 87(2)(b) again reached for his wallet. PO Lamour again said, "Get your hand out of your fucking pocket." PO Lamour then grabbed § 87(2)(b)'s right hand and placed it in a handcuff. PO Lamour ordered § 87(2)(b) to turn around. § 87(2)(b) complied. PO Lamour placed § 87(2)(b)'s other hand in cuffs. § 87(2)(b) asked, "What are you doing? What did we do wrong?" PO Lamour said he did not believe § 87(2)(b) was a student because of his facial hair, which made him appear older.

PO Lamour escorted § 87(2)(b) to a nearby wall. PO Lamour requested an additional unit via radio and searched § 87(2)(b)'s wallet for his identification. § 87(2)(b) took out his cell phone and began recording PO Lamour from a distance of 10 feet. § 87(2)(b) informed PO Lamour, "I'm going to record what's going on, because I don't think this is right." As he recorded, § 87(2)(b) repeatedly said, "This isn't right. Is this some sort of stop and frisk? Why is my friend being arrested? What did we do wrong?" § 87(2)(b) never raised his voice. § 87(2)(b) also memorized PO Lamour's badge number, which he provided during

his interview as 30321. PO Lamour ordered him to leave the station three times. § 87(2)(b) told § 87(2)(b) “It’s legal for you to record.” § 87(2)(b) continued recording. One man unknown to § 87(2)(b) stood nearby as he recorded the incident, but left to catch a train. No crowd gathered on scene.

PO Lamour escorted § 87(2)(b) back across the emergency exit towards the station entrance. § 87(2)(b) followed. When PO Lamour reached the base of the entrance steps, § 87(2)(b) stood seven to ten steps away from him. PO Lamour charged at him without warning by putting both of his hands up, running at him, grabbing him by his chest, and pulling him front-first to the ground in a fast motion. § 87(2)(b) dropped his sweet tea and his cell phone. § 87(2)(b) did not resist and put both his hands behind his back so PO Lamour could handcuff him. When § 87(2)(b) stood up, he observed that his cell phone was lying in a puddle of sweet tea, and the back of its case had fallen off. The cell phone appeared to still be on.

After a few minutes, additional officers arrived on scene, one of whom retrieved § 87(2)(b)’s cell phone. All officers escorted § 87(2)(b) and § 87(2)(b) out of the train station. § 87(2)(b) and § 87(2)(b) were transported to the Transit District 2 stationhouse in one of these vehicles.

Upon arrival at the Transit District 2 stationhouse, § 87(2)(b) and § 87(2)(b) were placed in separate but neighboring holding cells at the rear of the stationhouse. Throughout their arrest processing, PO Lamour repeatedly cursed. PO Lamour called § 87(2)(b) a “piece of shit.” § 87(2)(b) informed PO Lamour that his § 87(2)(b) works for the Department of Correction, and that his § 87(2)(b) is a police officer. PO Lamour told § 87(2)(b) “If you’d told me about that earlier, I would’ve let you go.” PO Lamour also told § 87(2)(b) stories about his childhood, including that when he was a child he used to be called a “pussy,” and that PO Lamour decided that he was not going to be called “pussy” any longer. PO Lamour asked him and § 87(2)(b) if they had ever been arrested. Both replied that they had not. PO Lamour continually cursed as he used a computer to search for their arrest histories. § 87(2)(b) believed PO Lamour cursed because neither he nor § 87(2)(b) had criminal records. § 87(2)(b) did not specifically recall how PO Lamour cursed at this time.

PO Lamour escorted § 87(2)(b) and § 87(2)(b) to Central Booking. PO Lamour told them, “People in Rikers...if you’re in there for three days, you’re either going to get raped by a man, or you’re going to rape a man.” At § 87(2)(b)’s arraignment, he learned that he was alleged to have said something along the lines of “Fuck the police,” and how it would be cool to get arrested. § 87(2)(b) denied making any such statements.

§ 87(2)(b)’s parents retrieved his personal property from officers at the stationhouse. When § 87(2)(b)’s cell phone was returned to him after his release from Central Booking, the video footage was gone, and his SIM card and battery were taken.

§ 87(2)(b) had to purchase a new SIM card. § 87(2)(b) thought it possible that an officer deleted the footage, but he did not know which one, or at what point it was deleted.

Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b). § 87(2)(b) is a male of unknown race, 5’6” tall, 187 pounds, with black hair and brown eyes. § 87(2)(b) is § 87(2)(b)’s friend.*

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on November 12, 2013 (encl. [3V-AD]). Immediately after using his student MetroCard to enter the transit system, he heard an officer, who he later identified by uniform as PO Lamour, say, “Stop, stop right there.” § 87(2)(b) and § 87(2)(b) stopped. PO Lamour approached and said, “Give me your MetroCard and your ID.” § 87(2)(b) provided both. PO Lamour reviewed these items, returned them, and then ordered § 87(2)(b) again to provide them. § 87(2)(b) was apprehensive about providing his student MetroCard, as one of his friends once told him that an officer had asked for her MetroCard, taken it, and never returned it. § 87(2)(b) asked PO Lamour why he needed his MetroCard. PO Lamour said, “Give me your MetroCard and your fucking ID.” § 87(2)(b) again asked why, but began to reach for his wallet, which was in his front rights pant pocket. § 87(2)(b) did not announce to PO Lamour that he was reaching for his identification because he thought it was obvious. § 87(2)(b) also said, “Okay,” in response to one of PO Lamour’s requests, but thought it possible that PO Lamour did not hear him. PO Lamour told § 87(2)(b) “Get your hands out of your fucking pocket. Give me your fucking ID and MetroCard.” PO Lamour then snatched § 87(2)(b)’s MetroCard from his hand.

PO Lamour placed one handcuff on § 87(2)(b)’s right hand. PO Lamour pushed § 87(2)(b) towards a wall approximately 10 or 15 feet away from where PO Lamour initially stopped him. § 87(2)(b) said, “Officer, you can’t arrest me, you didn’t tell me anything.” § 87(2)(b) denied raising his voice. PO Lamour pushed § 87(2)(b) against a wall from behind. When § 87(2)(b) put his left hand against the wall to prevent his face from hitting it, PO Lamour grabbed this hand, pulled it behind his back, and handcuffed him.

§ 87(2)(b) turned around and said to § 87(2)(b) “Yo, § 87(2)(b) what the bad kids said at school isn’t true, they said that this is cool, this isn’t cool, this hurts so bad!” § 87(2)(b) replied, “I know, bro, but you’ll get it off soon, he’s not going to arrest you.” PO Lamour went into § 87(2)(b)’s wallet and took out his student identification, his student MetroCard, and his state identification. PO Lamour stuffed § 87(2)(b)’s wallet back into his pocket. § 87(2)(b) then turned around and said, “Why are you arresting me?” PO Lamour told § 87(2)(b) that he did not look like a student.

§ 87(2)(b) took out his camera and began recording the incident. § 87(2)(b) told § 87(2)(b) “You have the right to record police activity.” § 87(2)(b) also repeated PO Lamour’s badge number out loud. PO Lamour said to § 87(2)(b) “Put away that camera and go on,” four times over the course of what § 87(2)(b) estimated to be a half an hour. When § 87(2)(b) told PO Lamour that he used to be an NYPD Explorer, PO Lamour said, “If you used to be an Explorer, you should know that you have to give me your fucking ID.” As § 87(2)(b) recorded from a distance of 20 feet, a man stopped next to him and observed part of the incident, but he left before the conclusion. There were 10 or 15 individuals who stopped to watch 30 or 40 feet behind PO Lamour.

PO Lamour escorted § 87(2)(b) from the turnstile and placed him near a garbage can inside the train station near the entrance. As he walked, PO Lamour repeatedly squeezed his handcuffs tightly, causing marks to § 87(2)(b)’s wrists. § 87(2)(b) followed at a distance of 10 to 15 feet. As § 87(2)(b) stood next to the garbage container, PO Lamour ran up to § 87(2)(b) with both of his hands extended forward, grabbed him in a bear hug, and threw him onto the ground. § 87(2)(b) dropped his beverage and his cell phone, the back and battery of which fell out. § 87(2)(b) landed front-first with his face pressed into the corner of the wall and the garbage container. § 87(2)(b) initially put his hands under his body to break his fall but almost

immediately put both of his hands behind his back. PO Lamour handcuffed him and lifted him to his feet. § 87(2)(b) and § 87(2)(b) were escorted to the Transit District 2 stationhouse in a marked police vehicle.

Upon arrival at the Transit District 2 stationhouse, PO Lamour placed § 87(2)(b) and § 87(2)(b) in separate cells, but because the cells were only 10 feet wide, they were able to see each other. PO Lamour asked both if they had ever been arrested before. When both replied that they had not, PO Lamour said, “Are you fucking sure? Because if I find anything, you guys are going down.” When PO Lamour used a computer to search for their arrest histories and returned no results, he said, “These fucking stupid kids. I could be doing other things...but I have to deal with these fucking kids.” When § 87(2)(b) informed PO Lamour that his § 87(2)(b) was a Correction officer and his § 87(2)(b) a police officer, PO Lamour said, “You’re a piece of shit, you know that? If I’d known that earlier I wouldn’t have arrested you, because cops don’t arrest cops.” PO Lamour repeatedly called § 87(2)(b) a “piece of shit” thereafter. PO Lamour also told § 87(2)(b) and § 87(2)(b) a story about how, “other kids at [his] school would call him a pussy because he would never go with them to steal anything, and now [he’s] not a pussy anymore because he can arrest them and he can arrest whoever he wants.” PO Lamour also asked § 87(2)(b) if he was “fucking stupid.”

PO Lamour transported § 87(2)(b) and § 87(2)(b) to Central Booking. While there, PO Lamour told both of them, “You know what they do in jail? Two little faggots like you; they’re going to have fun with you tonight.”

Attempts to Contact Civilians

On April 8, 2014, the undersigned contacted § 87(2)(b) a potential witness to the allegations that occurred in the prisoner holding pens at the Transit District 2 stationhouse. While § 87(2)(b) remembered being present in the stationhouse on November 8, 2013, he did not remember hearing an officer curse, because he sees it “happen so often.” Between April 7 and April 19, 2014, the undersigned called a second potential witness to the allegations in the prisoner holding pens, § 87(2)(b) and mailed him two-please call letters. To date, the undersigned has not been able to reach § 87(2)(b).

NYPD Statements:

Subject Officer: PO GARRY LAMOUR

- *At the time of this incident, PO Lamour was § 87(2)(b) old. PO Lamour is a black man, 5’9” tall, 185 pounds, with black hair and brown eyes.*
- *PO Lamour is an officer of Transit District 2. On November 8, 2013, PO Lamour worked from 3 p.m. until 11:35 p.m. PO Lamour was assigned to a foot post at the Chambers Street and Brooklyn Bridge – City Hall train stations. PO Lamour was in uniform and worked alone.*

Arrest and Complaint Reports (encl. [4I-Q])

The arrest report for § 87(2)(b) states: “§ 87(2)(a) 160.50

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) ” It states that no force was used.

The arrest report for § 87(2)(b) states: “§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED].” It states that no force was used and lists “drug used” as marijuana or hashish.

Memo Book (encl. [4A-H])

At 5:20 p.m., PO Lamour observed two males using student MetroCards to gain access to the system, § 87(2)(b) and § 87(2)(b) § 87(2)(b) upon stop showed identification and the student MetroCard upon request [sic]. § 87(2)(b) refused to provide proper identification and the student MetroCard upon request and stated, “Why? I am showing you nothing. I know my right.” § 87(2)(b) did resist arrest, pulling his arms away, flaring [sic] hands up and down preventing PO Lamour from cuffing him. § 87(2)(b) § 87(2)(b) held PO Lamour back from holding on to § 87(2)(b) PO Lamour gave § 87(2)(b) about his disorderly acts [sic] and continued to do so for approximately 20 to 25 minutes. PO Lamour removed § 87(2)(b) to outside of the station in order to conduction [sic] further investigation. § 87(2)(b) exited the station following [PO Lamour] and screaming, “Stop” and constineously [sic] asking questions and came close to [PO Lamour] outside the transit system knowingly obstructing governmental administration. At 5:35 p.m. both were arrested. At 5:45 p.m., both were transported to Transit District 2. PO Lamour arrived at Transit District 2 at 6 p.m. and began arrest processing at 6:15 p.m. He completed arrest processing at 8 p.m. At 10 p.m., PO Lamour transported both defendants to Central Booking.

PO Lamour made the following notations on his fly sheet. At 6:47 p.m., § 87(2)(b) § 87(2)(b) said to his friend, “Don’t worry no one would we will get out on and I will make the trip to Canada in the morning with my people.” “Well it happens on your birthday then just like my mom was having dreams about it,” said § 87(2)(b) § 87(2)(b) At 8:10 p.m., § 87(2)(b) § 87(2)(b) stated, “Sorry officer we thought that getting locked [sic] was cool as our friends said in school. But we are very sorry that we gave you a hard time.” § 87(2)(b) § 87(2)(b) stated, “Yeah! We are sorry, I should gave [sic] you that stupid I.D. We are very sorry officer.”

CCRB Statement (encl. [4R-U])

On January 21, 2014, PO Garry Lamour provided a statement at the CCRB. On November 8, 2013, at approximately 5:30 p.m., PO Lamour was at his post at the Foley Square entrance of the Chambers Street J/Z and Brooklyn Bridge – City Hall 4/5 subway stop. PO Lamour was standing next to the MetroCard vending machines when he observed § 87(2)(b) and § 87(2)(b) swipe student MetroCards to enter the station. PO Lamour could tell that these were student MetroCards because the turnstile emitted an orange or yellow light. PO Lamour did not believe that § 87(2)(b) was a high school student because he had long hair and a full beard. PO Lamour did not suspect that § 87(2)(b) was not a student.

PO Lamour walked towards § 87(2)(b) and § 87(2)(b) because he wanted to ask them to show identification that would verify their right to have student MetroCards. PO Lamour gained their attention by saying, “Excuse me,” as he approached. PO Lamour asked both for identification. § 87(2)(b) showed PO Lamour his student MetroCard and his identification. PO Lamour told § 87(2)(b) that he was free to go. § 87(2)(b) willingly handed his student MetroCard to PO Lamour but did not hand him any identification. PO Lamour denied snatching the MetroCard from § 87(2)(b) s hand. PO Lamour requested that § 87(2)(b) provide identification so he could verify that the

student MetroCard belonged to him. § 87(2)(b) said he knew his rights and did not have to speak to PO Lamour or show him identification. § 87(2)(b) said, “Fuck you. I’m not talking to you.”

PO Lamour informed § 87(2)(b) that he had seen him use a student MetroCard and that he wanted to see something to verify his right to have this. PO Lamour asked for identification more than five times but could not recall exactly how many times he asked. § 87(2)(b) did not give any indication that he intended to provide his identification. PO Lamour did not recall § 87(2)(b) ever motioning his hand towards his pocket during this time. PO Lamour never said, “Get your hand out of your fucking pocket.”

PO Lamour decided to place § 87(2)(b) under arrest because he was not complying with instructions to show identification. He also wished to conduct further investigation of whether or not he was in fact a student. PO Lamour explained to § 87(2)(b) that if he did not provide identification to verify he was a student, he would be under arrest for obstructing governmental administration. PO Lamour grabbed § 87(2)(b) by his hand and told him that they would have to move so that they would not be obstructing the flow of people entering and exiting the platform. PO Lamour asked § 87(2)(b) to place his hands behind his back so that he could place him in handcuffs.

§ 87(2)(b) did not comply with these instructions and moved his body while PO Lamour attempted to place handcuffs on him. § 87(2)(b) pulled his arms towards the front of his body. PO Lamour pulled at § 87(2)(b)'s arms and eventually was able to pull them behind his back. PO Lamour double locked the handcuffs. PO Lamour did not recall § 87(2)(b) ever complaining about them being too tight and did not recall adjusting § 87(2)(b)'s handcuffs after they were placed on him.

§ 87(2)(b) walked back towards PO Lamour and stood close to him, but he could not estimate the distance. § 87(2)(b) told PO Lamour that he was trying to arrest black people, and said, “this is stop and frisk.” § 87(2)(b) continued to speak to PO Lamour in a raised voice and used profanity. PO Lamour multiple times informed him that he was conducting police business, that the stop did not concern him, to step back and to go home. § 87(2)(b) repeatedly moved forwards and backwards as PO Lamour told him to leave. § 87(2)(b) told PO Lamour that he was going to record him, put the video on YouTube and make fun of him because “he was nobody.” § 87(2)(b) was recording PO Lamour on his cell phone camera. PO Lamour observed § 87(2)(b) putting his other hand in his pocket and taking it back out. § 87(2)(b) did this more than once but did not take anything out of his pocket. PO Lamour could not recall how many times he did this. PO Lamour did not observe any bulges in § 87(2)(b)'s pockets. PO Lamour informed § 87(2)(b) that he was obstructing governmental administration. § 87(2)(b) stated that he did not care and was not going to leave.

PO Lamour was concerned for his safety because the part of the station they were in was empty and because § 87(2)(b) was not complying with orders to leave. PO Lamour further felt that his life was in danger because § 87(2)(b) was not complying with orders to show identification. PO Lamour decided to move outside of the station where there were more people and where it would be safer. PO Lamour did not want § 87(2)(b) to run away while he was speaking with § 87(2)(b). PO Lamour grabbed § 87(2)(b)'s backpack and walked him outside. § 87(2)(b) closely followed PO Lamour out of the station. PO Lamour walked § 87(2)(b) to a corner by the subway entrance and again told § 87(2)(b) to leave.

Upon review of the video footage depicting the vestibule of the station, at 5:41:55, PO Lamour indicated that during this time, § 87(2)(b) was saying to him, “I’m

going to destroy you and put you on camera.” PO Lamour told him, “Come here.” As § 87(2)(b) appears in the frame to the right, PO Lamour indicated that he moved away, at which time he pursued him.

PO Lamour also said that before he pursued § 87(2)(b) he was holding something in his hand, and that he was unable to tell what this object was. As PO Lamour ran towards him, he instructed § 87(2)(b) to get down. PO Lamour concurrently grabbed him by both hands. PO Lamour brought § 87(2)(b) to the ground face down with his hands behind his back. § 87(2)(b) attempted to bring his arms around to the front of his body so he could not be placed in handcuffs. PO Lamour pulled § 87(2)(b)'s arms behind his back and handcuffed him.

At some juncture prior to leaving the subway station, PO Lamour requested backup. Soon after § 87(2)(b) was handcuffed, additional officers arrived to transport § 87(2)(b) and § 87(2)(b) to the Transit District 2 stationhouse.

PO Lamour processed the arrests for § 87(2)(b) and § 87(2)(b) and vouchered their MetroCards. PO Lamour did not have to voucher personal property because it was retrieved by their parents. PO Lamour never seized the SIM card from § 87(2)(b)'s cell phone and was never aware of any other officer seizing the SIM card. PO Lamour did not search § 87(2)(b)'s cell phone and was not aware of any other officer doing this.

PO Lamour never called § 87(2)(b) a “piece of shit.” PO Lamour never spoke to § 87(2)(b) or § 87(2)(b) about his childhood, or made comments about how he used to be called a “pussy.” PO Lamour never said, “Are you fucking sure?” while questioning § 87(2)(b) and § 87(2)(b) about their arrest histories. PO Lamour never said, “These fucking stupid kids. I could be doing other things with my time, but I have to deal with these fucking kids.” PO Lamour did not ask § 87(2)(b) if he was “fucking stupid,” or tell him that he should have known to give him his “fucking ID.” PO Lamour never heard § 87(2)(b) say he was an NYPD Explorer but did recall him saying that he had family in the NYPD. When PO Lamour asked § 87(2)(b) why he was giving him a hard time, he apologized.

PO Lamour alone escorted § 87(2)(b) and § 87(2)(b) to Manhattan Central Booking. PO Lamour did not tell § 87(2)(b) or § 87(2)(b) that they would either “be raped by a man or rape a man.” PO Lamour never said, “Two little faggots like you; they’re going to have fun with you tonight.” PO Lamour never used any profanity or offensive language during this incident. PO Lamour never established whether or not § 87(2)(b) was a student because he could not find identification in § 87(2)(b)'s wallet.

NYPD Documents

Communications CD and Event Chronology (encl. [5N-W])

The event was created at 5:33 p.m. as a pick-up arrest by Transit Post 44, identified by the investigation as PO Lamour. The event was marked as a 10-P9, or investigation of possible crime or suspicious person in transit. PO Lamour immediately noted one arrest. Central Dispatch asked him if he was all right and PO Lamour replied that he was. At 5:44 p.m., PO Lamour reported a second arrest. At 5:45 p.m., Transit District 2 Sergeant 1, identified by the investigation as Sgt. James Aitken and his operator, PO Gustavo Vargas, may have responded. Transit District 2 Sector B, identified by the investigation as PO Kelly Graham and PO Harold Quezada, told Central Dispatch that they would pick up PO Lamour and his defendants. At 5:53 p.m., PO Quezada and PO Graham transported both defendants to the Transit District 2 stationhouse.

Other Evidence

MTA Video Footage Summary and Screenshots (encl. [6A-AV])

The MTA provided six camera angles of the Chambers Street BMT station that depict this incident. The footage lacks audio. All distances noted below are approximations. Angle one shows the mezzanine inside the transit system, angle two depicts the mezzanine outside of the transit system, angle three depicts the entrance to the station from its vestibule, while angle five and six depict the high wheel turnstile from the entrance and exit sides.

- In angle five at 5:29:19, § 87(2)(b) enters the turnstile ahead of § 87(2)(b). In angle six, the yellow stripe of the turnstile glows for both. At 5:29:26 in the fifth angle, both turn their heads to look behind them. In angle one, at 5:29:30, PO Lamour has entered through the emergency exit and is standing with § 87(2)(b) and § 87(2)(b) to the far right of the frame near the high wheel turnstile (encl. [6G]). At 5:30:27 in the sixth view, after PO Lamour returns his identification, § 87(2)(b) walks to the left, standing five to seven feet from PO Lamour. At 5:31:13 in angle one, PO Lamour holds § 87(2)(b) by his arm and walks him to a wall in the mezzanine. § 87(2)(b) follows seven feet behind (encl. [6H]).
- At 5:31:24, § 87(2)(b) takes out his cell phone to record as PO Lamour handcuffs § 87(2)(b) (encl. [6I]). By 5:31:51, § 87(2)(b) has moved to stand within one foot of § 87(2)(b) (encl. [6J]). At 5:32:05, PO Lamour extends his arm towards § 87(2)(b) (encl. [6K]). § 87(2)(b) moves to stand seven feet away (encl. [6L]). Each of the multiple times PO Lamour gestures for him to step back, he complies (encl. [6M-X]). At 5:32:16 in angle six, PO Lamour searches through a wallet for thirty seconds and then puts it in § 87(2)(b)'s jacket pocket. At 5:33:54 in angle six, PO Lamour begins writing in his memo book. At 5:41:22, § 87(2)(b) follows 10 feet behind PO Lamour as he walks § 87(2)(b) out of the station (encl. [6Y-Z]).
- At 5:41:39 in angle three, PO Lamour reappears on the left side of the frame holding § 87(2)(b) by his right arm with his left hand and his backpack in his right hand, followed 20 feet behind by § 87(2)(b) (encl. [6AA]). At 5:41:43, PO Lamour arrives at the station entrance (encl. [6AB]) and stands to the right of a rectangular, two to three-foot high blue metal waste container in its corner. § 87(2)(b) stands 7 to 10 feet in front of PO Lamour with his back to the camera (encl. [6AC]). At 5:41:54, § 87(2)(b) moves two to three feet to the side and is wholly eclipsed by a wall (encl. [6AD-AF]). (He then appears in angle four from the right hand side of the frame (encl. [6AH]), holding his cell phone in his right hand and the sweet tea in the crook of his left elbow).
- At 5:41:56 in angle three, PO Lamour runs forward with both arms extended (encl. [6AG, 6AI]) (In the fourth angle, PO Lamour grabs § 87(2)(b) by his right arm and backpack and pulls him forward (encl. [6AJ-AK, 6AM-AN])). At 5:41:57, PO Lamour brings § 87(2)(b) face-down to the ground diagonally (encl. [6AL, 6AO-AQ]). PO Lamour grips both his legs to extend them straight onto the ground and handcuffs him (encl. [6AR-AV]). At 5:42:35, PO Lamour lifts § 87(2)(b) to his feet.

Arrests for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]
[§ 87(2)(b)]
[§ 87(2)(b)]

Status of Civil Proceedings

- [§ 87(2)(b)] and [§ 87(2)(b)] filed a Notice of Claim with the City of New York on [§ 87(2)(b)]
[§ 87(2)(b)], claiming assault and battery, baseless arrest, search and seizure of person and property,
malicious prosecution, deprivation of civil rights, injury, and damage, and seeking
\$100,000,000 as redress (encl. [8A-B]).
- [§ 87(2)(b)] and [§ 87(2)(b)] have not filed a
Notice of Claim with the City of New York as of April 2, 2014, more than two months after
the filing deadline, with regard to the incident (encl. [8C]).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)]
[§ 87(2)(b)]
[§ 87(2)(b)]

Civilians CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)]
[§ 87(2)(b)] and [§ 87(2)(b)] (encl. [2B-D]).

Subject Officer CCRB History

- PO Garry Lamour has been a member of the service for 2 years and there are three
substantiated CCRB allegations against him (encl. [2A]).
 - In case 201301141, allegations of a stop, frisk, and search of person were
substantiated and charges were recommended. The outcome has yet to be
determined.

Conclusion

Identification of Subject Officers

[§ 87(2)(b)] and [§ 87(2)(b)] identified PO Lamour by his badge
number, which they read from his uniform. PO Lamour acknowledged interacting with [§ 87(2)(b)]
[§ 87(2)(b)] and [§ 87(2)(b)] [§ 87(2)(g)]
[§ 87(2)(b)]
[§ 87(2)(b)]

Investigative Findings and Recommendations

Allegations Not Pleaded

[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]
[§ 87(2)(g)]

§ 87(2)(b) said that when his cell phone was returned to him, its SIM card and battery were missing, and the video footage he recorded was gone. § 87(2)(b) thought it possible that an officer searched his phone to delete this video footage, but did not see an officer do so. § 87(2)(g)

Allegation A – Abuse of Authority: Inside the Chambers Street J/Z train station, PO Garry Lamour stopped § 87(2)(b)

It is undisputed that PO Lamour upon approach requested identification and MetroCards from § 87(2)(b) and § 87(2)(b). It is undisputed that § 87(2)(b) and § 87(2)(b) who both were § 87(2)(b) at the time of this incident, used their student MetroCards to enter the transit system. It is also not disputed that § 87(2)(b) had a beard at the time of the incident.

PO Lamour said he approached § 87(2)(b) because he appeared to be older than a high school student due to his facial hair and his long hair and therefore was improperly using a student MetroCard.

An officer may forcibly stop a person when he reasonably suspects that such person has committed, is committing, or is about to commit a crime. People v. Debour, 40 N.Y.2d 210 (1976) (encl. [1A-K])

§ 87(2)(g)

Allegation B - Discourtesy: Inside the Chambers Street J/Z train station and the Transit District 2 stationhouse, PO Garry Lamour spoke rudely to § 87(2)(b)
and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that PO Lamour repeatedly and excessively cursed throughout this incident.

§ 87(2)(b) alleged that after repeatedly asking § 87(2)(b) to provide his MetroCard, PO Lamour said, “Let me see your fucking MetroCard.” § 87(2)(b) alleged that after asking for his MetroCard and identification once, PO Lamour said, “Give me your MetroCard and your fucking ID.” Both § 87(2)(b) and § 87(2)(b) indicated that when § 87(2)(b) reached into his pocket to retrieve his identification, PO Lamour said, “Get your hand out of your fucking pocket.” § 87(2)(b) alleged that PO Lamour again said, “Give me your fucking ID and MetroCard.” § 87(2)(b) alleged that when he told PO Lamour that he used to be an NYPD Explorer, PO Lamour said that he should know to give his “fucking ID.”

Once at the Transit District 2 stationhouse, both § 87(2)(b) and § 87(2)(b) § 87(2)(b) alleged that PO Lamour repeatedly called § 87(2)(b) a “piece of shit.” § 87(2)(b) and § 87(2)(b) both alleged that PO Lamour told them that he used to be a “pussy,” but was not a “pussy” anymore. § 87(2)(b) and § 87(2)(b) both alleged that while searching for their arrest histories, PO Lamour cursed repeatedly. § 87(2)(b) did not remember more specifically what PO Lamour said while searching for their arrest histories, but § 87(2)(b) recalled that PO Lamour said, “Are you fucking sure?” and, “These fucking stupid kids. I could be doing other things, but I have to deal with these fucking kids.” § 87(2)(b) also alleged that PO Lamour asked him if he was “fucking stupid.”

PO Lamour denied making any of the aforementioned statements, and denied using any profanity during this incident.

§ 87(2)(g)

Officers must be courteous and respectful when dealing with the public. Patrol Guide Section 203-09 However, officers may use limited profanity where necessary to maintain control or gain compliance during stressful street encounters. PD v. Court (DCT no. 79627/04) (encl. [1P-Y])

§ 87(2)(g)

Allegation C – Physical Force: Inside the Chambers Street J/Z train station, PO Garry Lamour used physical force against § 87(2)(b)

Allegation D - Abuse of Authority: Inside the Chambers Street J/Z train station, PO Garry Lamour arrested § 87(2)(b)

It is undisputed that PO Lamour arrested § 87(2)(b) and used physical force do so by running towards him, grabbing him, and bringing him to the ground.

§ 87(2)(b) indicated that as he recorded PO Lamour on his cell phone, he maintained a distance of approximately 10 feet. § 87(2)(b) protested § 87(2)(b)'s arrest, but did not raise his voice or curse. § 87(2)(b) ignored PO Lamour's three orders that he leave the station. No crowd gathered and § 87(2)(b) did not resist his arrest.

§ 87(2)(b) thought that 10 or 15 individuals stopped to observe the incident about 30 to 40 feet behind PO Lamour. § 87(2)(b) stood 20 feet from PO Lamour as he recorded. When § 87(2)(b) PO Lamour brought § 87(2)(b) to the ground, he put his hands under his body to break his fall but then immediately put both hands behind his back.

PO Lamour could not estimate how far § 87(2)(b) stood from him at any point during this incident. § 87(2)(b) repeatedly used profanity and raised his voice, although none of the specific phrases PO Lamour attributed to him included profanity. PO Lamour saw § 87(2)(b) reach into his pocket more than once, but did not see him remove any object or see bulges in his pockets. § 87(2)(b) also repeatedly moved back and forth despite repeated orders to step back and to leave the station. Because § 87(2)(b) did not comply with these orders, because § 87(2)(b) had refused to provide his identification, and because PO Lamour was in an isolated area, he

feared for his safety. After escorting § 87(2)(b) to the entrance of the train station, PO Lamour saw § 87(2)(b) raising his voice and holding an object which he could not describe. PO Lamour said, “Come here,” at which point § 87(2)(b) moved to the right as though attempting to evade PO Lamour. After bringing him to the ground, § 87(2)(b) attempted to resist his arrest by holding his arms beneath his body.

The MTA video footage provided shows that when § 87(2)(b) initially began recording the arrest of § 87(2)(b) he came extremely close to PO Lamour. However, after

PO Lamour pointed at him, apparently ordering him to step back, he complied and moved to stand approximately six or seven feet away. Though he shifted back and forth, he never again moved closer to PO Lamour than approximately five feet, and stepped backward each time he was told to do so. § 87(2)(b) occasionally re-arranged the objects he held in his hands, identifiable as his beverage and his cell phone. He did not appear to repeatedly reach into his pockets.

Civilians stopped to observe the incident, but a crowd never formed and no civilian attempted to interfere in the arrest. Video footage also shows that upon arrival at the base of the entrance steps, § 87(2)(b) stood several feet in front of PO Lamour, and that after bringing § 87(2)(b) to the ground, PO Lamour handcuffed him within seconds.

A person is guilty of resisting arrest when he attempts to prevent a police officer from effecting an authorized arrest. New York State Penal Law, Section 205.30 (encl. [1Z]) A person is guilty of obstructing governmental administration when he attempts to prevent a public servant from performing an official function by means of physical intimidation, force or interference, or by means of any independently unlawful act. NYS Penal Law, Section 195.05 (encl. [1Z]) A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, he engages in fighting, violent, tumultuous or threatening behavior, makes unreasonable noise, uses abusive or obscene language or makes an obscene gesture, obstructs pedestrian traffic, or congregates with other persons in a public space and refuses to comply with a lawful order to disperse. NYS Penal Law, Section 240.20 (1-6)(encl. [1Z-AA]) Taking videotapes, crude and vulgar speech, and remaining in the vicinity of the stop or arrest does not constitute probable cause for arrest of an onlooker, unless the officer reasonably believes his safety or the safety of others is endangered. Patrol Guide Section 208-03 (encl. [1AB-AN]) Officers must use the minimum necessary force to overcome resistance or effect an arrest. Patrol Guide Section 203-11 (encl. [1AO-AP])

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation E – Offensive Language: Inside of Manhattan Central Booking, PO Garry Lamour made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientation.

§ 87(2)(b) alleged that upon arrival at Manhattan Central Booking, PO Lamour said, “You know what they do in jail? Two little faggots like you; they’re going to have fun with you tonight.” § 87(2)(b) confirmed that PO Lamour made a remark about what would happen to them in prison, stating, “People in Rikers...if you’re in there for three days, you’re either going to get raped by a man, or you’re going to rape a man.” PO Lamour denied making any such statement during this incident, or using any offensive language.

§ 87(2)(g)

Allegation F – Abuse of Authority: Inside the Transit District 2 stationhouse, PO Garry Lamour damaged § 87(2)(b) s property.

When PO Lamour brought § 87(2)(b) to the ground, he dropped his cell phone and his beverage on the floor. The cell phone landed in the spilled beverage and its back fell off, but it still appeared to be turned on. The cell phone was retrieved by one of the additional responding officers, and was released to § 87(2)(b) s parents at the Transit District 2 stationhouse. When the cell phone was returned to § 87(2)(b) he saw that its SIM card and battery were missing, as was the video footage he had of the incident. § 87(2)(b) thought it was possible that an officer searched his cell phone and deleted the video footage, but did not see this occur.

PO Lamour denied searching his cell phone or deleting the video footage or seeing any officer do so. The cell phone and § 87(2)(b) s other property was not vouchered because it was released to his parents from the Transit District 2 stationhouse.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date